

**U.S. INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In The Matter Of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**STIPULATION REGARDING EXCHANGE OF EXHIBITS, DEMONSTRATIVES FOR
THE EVIDENTIARY HEARING AND OTHER STIPULATIONS**

Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, “Samsung” or “Complainants”) and Respondents Ouraring, Inc. and Oura Health Oy (collectively, “Oura” or “Respondents”) (collectively, “the Parties”), make the following agreements and stipulations solely for purposes of the forthcoming ITC evidentiary hearing. Nothing in this stipulation waives any Party’s rights to object to the use or admissibility of any exhibit or demonstrative at the evidentiary hearing.

I. Pre-Hearing Conference:

- A. Complainants and Respondents will each serve a list of issues that they anticipate addressing at the pre-hearing conference by 2 PM ET two days before the pre-hearing conference.
- B. The Parties will meet and confer on any outstanding issues in advance of the pre-hearing conference by 2 PM ET one day before the pre-hearing conference.

II. Witness Order:

- A. By 7:15 PM ET two calendar days before the day when it intends to call a witness at the evidentiary hearing, each Party will serve a list of the specific witnesses that it intends to call that day, and the order in which they will be called that day.
- B. The Parties agree that fact witnesses will be called only once and can be cross-examined outside the scope of direct examination.

III. Opening Statements:

- A. The Parties will identify all exhibits and demonstratives they intend to use during opening statements by 5 PM ET the day before opening statements.
- B. By 7:30 PM ET, the Parties will exchange objections (if any) to those demonstratives and exhibits.
- C. By 8:30 PM ET, the Parties will meet and confer on any objections to those demonstratives and exhibits. If any disputes remain following this conference, the Parties will apprise the ALJ of the unresolved objections prior to the start of the hearing day or as otherwise instructed by the ALJ.

IV. Direct Exhibits and Demonstratives:

- A. The Parties will identify and exchange a copy of direct examination exhibits and a copy of the demonstratives for each witness to be called by 7:15 PM ET one calendar day before the expected testimony. The Parties are not required to exchange demonstratives and exhibits to be used for cross-examination, if any, in advance of the hearing day.
- B. The Parties will exchange objections (if any) to those demonstratives and exhibits by 9:00 PM ET one calendar day before the expected testimony.
- C. The Parties will meet and confer on any objections to those demonstratives and exhibits by 9:30 PM ET one calendar day before the expected testimony. If any disputes remain following this conference, the Parties will apprise the ALJ of the unresolved objections prior to the start of the hearing day or as otherwise instructed by the ALJ.
- D. The Parties will make demonstratives created during the course of a hearing day (*e.g.*, an annotation to an exhibit or a hand-drawn image) available to the other side on request.
- E. In accordance with G.R. 12.3.3, Parties are not required to provide physical binders containing direct-examination exhibits to opposing counsel or the witness. At their election, parties may instead provide a copy of the exhibits to the witness via electronic medium (*e.g.*, laptop, tablet). The provision of exhibits under Section IV(A), *supra*, will discharge a parties duty to provide a copy of exhibits to opposing counsel. The parties further understand from instructions provided at the hearing in ITC Investigation No. 337-TA-1468 that the Administrative Law Judge does not require a physical binder of exhibits used for direct examination.

V. Cross Exhibits and Demonstratives:

- A. The Parties agree that exhibits for cross-examination need not be identified prior to their use, but each Party will be responsible for distributing physical cross-

examination binders containing such exhibits to the witness, ALJ, and opposing counsel before the start of the cross-examination.

- B. The Parties agree that cross-examination demonstratives do not need to be exchanged in advance of their use. However, if a Party intends to use cross-examination demonstrative slide presentations not generated during cross-examination and for which the other parties do not yet have a hard copy, then hard copies of such cross-examination demonstratives will be provided to each Party consistent with Ground Rule 13.6.5 and immediately prior to the use of any such demonstrative with a witness. The Party cross-examining a witness will provide electronic copies of any cross-examination demonstratives, whether prepared in advance of the cross examination or generated during the cross by 7:15 PM ET at the conclusion of the hearing day when they were first used. The Parties also agree to allow demonstratives used during cross-examination to be used during redirect through request of the opposing Party's Hearing Technician.

VI. Time at the Hearing:

- A. The Parties agree that time spent objecting to exhibits, demonstratives, and testimony will be charged to the Party who loses the objection. If the ALJ defers ruling on an objection (including, for example, by directing the Parties to submit bench briefs), the Parties will split that argument time evenly. Where the ALJ sustains in part and overrules in part an objection, the Parties agree to split the time evenly.
- B. As it relates to timekeeping, the Parties agree that direct examination for a witness begins when the witness is called and ends when the witness is passed for cross; and cross-examination for a witness begins when the witness is passed from direct and ends when the witness is passed for redirect or released.
- C. The Parties agree to track time and to exchange estimates of time used and time remaining for each Party as of the end of that hearing day by 7:15 PM ET, and to meet and confer by 9:30 PM ET to address any outstanding time disputes, or as otherwise instructed by the ALJ. Per Ground Rule 13.7, by 8:00 AM ET on each day on which court is in session, the Parties will jointly submit a schedule of estimated time and date of hearing witnesses for that day and will identify the trial time remaining for each Party. Absent contrary instructions, outstanding disputes regarding time estimates will be raised with the ALJ the next morning before the hearing begins. Time used by the ALJ to question witnesses will be split evenly between the Parties' time.

VII. Entering Exhibits into Evidence:

- A. After each hearing day, the Parties will coordinate about which exhibits were introduced into evidence during the day, and exchange full lists of proposed admitted exhibits at 7:15 PM ET after each hearing day. The parties will exchange any objections (limited to contesting whether the exhibit was referenced during a

witness's testimony and to exhibits excluded by the ALJ during the Hearing) by 9:00 PM ET and meet and confer by 9:30 PM ET as needed. The Parties will then submit the proposed admitted exhibit list to the ALJ in the format ordered by the ALJ pursuant to Ground Rule 12.4.1.

- B. The Parties will coordinate a procedure for the final day of the Hearing such that the final list of proposed admitted exhibits is admitted prior to the record closing on September 22, 2026.

VIII. Witness Sequestration:

- A. The Parties agree that fact witnesses, with the exception of the corporate representative, will be sequestered during the Investigative hearing including during opening statements until the entirety of their examination(s) is complete.
- B. For clarity, experts may observe any portion of the hearing and may review all transcripts. Per Ground Rule 13.6.8, Counsel may not speak with any witness during breaks in the witness's testimony regarding the substance of the witness's testimony while the witness is still on the stand. If a break is taken for any expert witness on the stand in a party's case-in-chief, counsel may not speak with that expert as to matters under examination, but that does not limit counsel's ability to speak with that witness during the break as to matters to be addressed during that party's rebuttal case. If a break is taken for any expert witness on the stand on cross-examination, counsel may not speak with that expert about the substance of that witness's testimony.

IX. NEXT Advocates:

The Parties intend to participate in the NEXT Advocates program and propose the following for the evidentiary hearing:

- A. Subject to the ALJ's approval, a party that permits a less-experienced attorney to examine a witness at the hearing (direct or cross) or to argue motions will not have that examination or argument time counted against their allotted time budget. The maximum amount of this "free" examination time will be up to an additional fifteen (15) minutes for each NEXT Advocate (up to two NEXT Advocates per side) and will be accounted for on that hearing day. Parties who wish to participate in this arrangement should provide notice through lead counsel to the ALJ and the other Parties by no later than one week before the start of the evidentiary hearing. While that proposal need not identify the NEXT advocates, it should provide the total number of NEXT advocates each Party intends to use. The Parties agree to identify the NEXT advocates at the hearing such that each Party can properly account for such time in their daily time estimates.

X. Other Agreements:

- A. Binders containing all exhibits to be used during cross-examination must be made available to the witness, the Parties, and the ALJ prior to the start of a witness's cross-examination.
- B. The Parties may move to admit demonstratives into the record for demonstrative purposes, but not as substantive evidence.
- C. The Parties agreed to the following schedule for the exchange of deposition designations and related counter-designations:
 - August 7: Parties serve initial deposition designations;
 - August 14: Parties serve deposition counter-designations.
- D. The Parties agree to exchange deposition designations in .pdf format as highlighted transcripts with colors light enough for printing without obscuring text and in native Excel spreadsheet format that contains for each designation the deponent's name, date of the transcript, beginning page, beginning line, end page, and end line.

Dated: August 31, 2026

/s/ D. Sean Trainor

D. Sean Trainor
Renia Zervos
Khanh Leon
Jacob Boesch
O'MELVENY & MYERS
1625 Eye Street
Washington D.C. 20006
Tel.: (202) 383-5300

Ryan K. Yagura
Ben Haber
Nancy Schroeder
Grace McFee
Ohona Chowdhury
O'MELVENY & MYERS LLP
400 South Hope Street
Los Angeles, CA 90071
Tel.: (213) 430-6000

Mark Liang
Bill Trac
Rui Li
Sorin Zaharia
Eric T. Ong
O'MELVENY & MYERS LLP
Two Embarcadero Center, 28th Floor
San Francisco, CA 94111
Tel.: (415) 984-8700

Marc Pensabene
Laura Gore
Caitlin P. Hogan
Nate Legum
Joanne Bae
O'MELVENY & MYERS LLP
1301 Avenue of the Americas, 17th Floor
New York, NY 10019
Tel.: (212) 326-2000

John Kappos
Cason Cole
Frances Mackay
O'MELVENY & MYERS LLP

Respectfully submitted,

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan
James A. Fussell, III
Saqib J. Siddiqui
Bryan C. Nese
Michael L. Lindinger
Tiffany A. Miller
Clark S. Bakewell
Alison T. Gelsleichter
Tariq Javed
Amanda E. Stephenson
Seth W. Bruneel
Courtney Krawice
Séké Godo
Angeline Premraj
Paul Choi
So Ra Ko
Andrew Huntsinger
Jaspreet Momi
Jennifer Weinberg
Sydney N. Royer
MAYER BROWN LLP
1999 K Street, NW
Washington, DC 20006-1101
Tel.: +1 202.263.3000

Robert G. Pluta
Nicholas H. Ciulla
MAYER BROWN LLP
71 S. Wacker Drive
Chicago, IL 60606
Tel.: +1 312.782.0600

*Counsel for Respondents Ouraring Inc. and
Oura Health Oy*

Oura-ITC@mayerbrown.com

2801 North Harwood Street, Suite 1600
Dallas, TX 75201
Tel.: (972) 360-1900

Email: OMM-Samsung-Oura@omm.com

*Counsel for Complainants Samsung
Electronics Co., Ltd. and Samsung
Electronics America, Inc.*

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on August 31, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 1999 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Oura-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071